

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS **MARCH** TERM, A. D. 2025.

BEFORE HER HONOR: SIE-A-NYENE G. YUOH CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ... ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABAASSOCIATE JUSTICE
BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR...ASSOCIATE JUSTICE
BEFORE HER HONOR : CEATNEH D. CLINTON-JOHNSON...ASSOCIATE JUSTICE

Modern Development & Management Corporation (MDMC),)
represented by and thru its Chief Executive Officer (CEO),)
Mr. John S. Youboty, Sr., of the City of Monrovia, County of)
Montserrado, Liberia..... Informant)
Versus) Bill of
Information)

The Government of the Republic of Liberia represented by)
and through the Minister of Justice/Attorney General, Cllr. N.)
Oswald Tweh, the Deputy Ministers and Assistant Ministers,)
and all other Officers acting under the control and authority)
of the Government of Liberia through the Ministry of Justice)
..... 1st Respondent)

And)

The Government of the Republic of Liberia represented by)
the Minister of Transport, Hon. Sirleaf Ralph Tyler, and all)
deputies and assistant ministers acting under the control)
and authority of the City of Monrovia, Liberia)
..... 2nd respondent)

And)

Liberia Traffic Management Incorporated, represented by)
its Chief Executive Officer, Mr. Mohammed Abou Darwich,)
of the City of Monrovia, County of Montserrado, Liberia)
..... 3rd Respondent)

GROWING OUT OF THE CASE:

Modern Development & Management Corporation (MDMC),)
represented by and thru its Chief Executive Officer (CEO),)
Mr. John S. Youboty, Sr., of the City of Monrovia, County of)
Montserrado, Liberia..... Petitioner)
Versus) Petition for the
Writ of)

The Government of the Republic of Liberia represented by)
and through the Minister of Justice/Attorney General, Cllr. N.)
Oswald Tweh, the Deputy Ministers and Assistant Ministers,)
and all other Officers acting under the control and authority)
of the Government of Liberia through the Ministry of Justice)
..... 1st Respondent)

And)

The Government of the Republic of Liberia represented by
the Minister of Transport, Hon. Sirleaf Ralph Tyler, and all
deputies and assistant ministers acting under the control
and authority of the City of Monrovia, Liberia
..... 2nd respondent

And

Public Procurement and Concession Commission (PPCC)
Represented by its Executive Director, Mr. Bodger Scott
Johnson, and all Directors Members of the Board of
Commissioners acting under its Control and the authority
of the Republic of Liberia..... 3rd Respondent

And

The Ministry of Finance and Development Planning
represented by its Minister, Hon. Augustine Kpehe Ngafuan
all deputies and Assistant Ministers acting under the control
and authority of the Republic of Liberia..... 4th Respondent

And

The Liberia Revenue Authority (LRA), represented by its
Commissioner General, Hon. Dorbor Jallah, and all its
Deputies and Assistant Commissioners acting under it
control and authority of the Republic of Liberia
..... 5th Respondent

Heard: March 26, 2025

Decided: May 28, 2025

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT

On the 5th day of March, A.D. 2025, the Modern Development & Management Corporation (MDMC), Informant herein, filed this bill of information before this Court against the Government of the Republic of Liberia, as 1st respondent, the Ministry of Transport, as 2nd respondent and the Liberia Traffic Management Incorporated, as 3rd respondent. In its information, the informant alleged that as a petitioner, it filed a petition for a writ of prohibition before our Colleague, His Honor Yamie Quiqui Gbeisay, Sr. who ordered the issuance of the alternative writ of prohibition in which he placed a stay of proceedings and actions on the 1st and 2nd respondent herein, and after a hearing, entered a determination in favor of the informant, issuing the peremptory writ affirming the alternative writ issued and from which final ruling the respondents (the Government of Liberia and the Ministry of Transport) appeal to this Court.

While the appeal is pending before the Supreme Court, the informant MDMC complains that the 3rd respondent, the Liberia Traffic Management, acting under the instructions, directions, guidance and authority of the 1st and 2nd respondents, have taken actions to terminate informant's contracts and render the order of Justice Gbeisay and any decision of this Honorable Court in respect of the appeal pending ineffectual and unenforceable. The informant alleged that immediately following Justice Gbeisay's ruling, based on the instruction of the 1st and 2nd respondents, the 3rd respondent commenced performing the act prohibited by the alternative writ alluded to above, by producing, issuing, and selling to the public vehicle, motorcycle, and tricycle registration license plates and driver's licenses, which are the subject of the appeal pending before this Court; that as a result of this, the public has discontinued doing business with informant and heeded the advice of the 1st and 2nd respondents to do business with only the 3rd respondent; that the actions of the respondents are contemptuous for they are in defiance of the orders of the Chambers Justice and this Honorable Court.

The informant prays that this Court issues an interim order to the respondents to desist and immediately halt the production, issuance, distribution, and sale of "vehicle, motorcycle, and tricycle registration license plates and driver's license" to the public pending the hearing and determination of the appeal.

The 1st respondent among other things averred that there was no reference of any "stay order" in the notice of the Court issued to the 1st respondent; that prior to the service on it of the informant's petition for the writ of prohibition, on January 29, 2025, it published a Press Statement relative to the implementation of the Act to ratify the Concession Agreement between the 1st respondent and 3rd respondent, and in sharp reaction to 1st respondent's publication, informant filed a bill of information before the Chambers Justice alleging that the 1st respondent was in violation of a "stay order or alternative writ" issued by the Chambers Justice; that on February 5, 2025, the Court consolidated the hearing of the prohibition and the information and it was established during the hearing that the 1st respondent was not present at the conference had with the parties when the Chambers Justice ordered a "Stay" on all action, which action was that

of the termination and retendering of the subject contracts. The 1st respondent further contends that notwithstanding the Chambers Justice's ruling failing to expressly prohibit its action or equate same to terminating or retendering the informant's contract, it refrained from taking further steps aimed at collaborating with 3rd respondent until the pending appeal of the Chambers Justice's ruling on the Prohibition, and that the 1st respondent has disengaged its Project Committee, tabled the establishment of a transitory account and the ratification of the Project Development Plan. 1st respondent also averred that the informant still enjoys the confidence of the 2nd respondent, as it still issues driver's licenses and registered vehicles through the informant. That the informant's allegation that 1st and 2nd respondents, after the granting of the Prohibition by the Justice in Chamber, instructed or directed the 3rd respondent to implement actions contrary to the prohibition is false and misleading and intended to invite sentiments of the Court and that there is no evidence whatsoever that the 1st respondent issued any statement buttressing its January 29, 2025 Press Statement which was already litigated and passed upon by the Justice in Chambers. The 1st respondent prayed the Court to deny the informant's information.

For its part, the 2nd respondent averred that since the ruling on the petition for the writ of prohibition filed by the informant, the 2nd respondent has not sent out any mandate instructing the 3rd respondent to carry on the informant's functions; that the 2nd respondent is currently working with the informant in the discharge of its duties in registering vehicles and issuing vehicle licenses.

3rd respondent in its twenty-six counts returns, contends that the 3rd respondent was never a party to the informant's petition for the writ of prohibition, did not participate in the hearing, nor received the ruling therefrom, and cannot be bound by any ruling when it was not a party thereto. The 3rd respondent alleged that it has a concession contract with the 1st respondent which was enacted into law by the ratification of the legislature and published into handbills in January 2019, which precedes and differs from the informant's Public Private Partnership Agreement, executed in June 2020; that the notice being the cardinal principle of law that requires a person to be notified of a hearing in which he/she/it has an

interest, and the fact that the 3rd respondent not having knowledge of an/or being a party to the writ of prohibition and the judgment entered, bill of information cannot lie against the 3rd respondent. The 3rd respondent prays that this Court denies the informant's information as the 3rd respondent was never a party before the Chambers Justice.

After carefully examining the parties' respective positions, the lone issue for determining this bill of information is whether the respondents have disobeyed the Chambers Justice's ruling by executing those prohibited acts that the Chambers Justice restricted.

It is the office of a bill of information before this Court, to prevent *anyone whomsoever* from interfering with the Judgment and/or Mandate of the Supreme Court; Part Twelve (12) of the Revised Rules of the Supreme Court, *Dennis V Shiancoe et al, Supreme Court Opinion, March Term, 2011*. Bearing in mind that this case is on appeal before this Court, we will as much as possible avoid commenting on all the factual allegations raised by the parties; we will only examine the informant's information, the responses thereto and the Chamber Justice's ruling to determine whether there are violations of the Order/or act prohibited by this Court.

As stated, the Chamber Justice upon issued the alternative writ of prohibition, placed a stay of proceedings and action against the respondents. After a hearing, the alternative writ was upheld, and the preemptory writ was ordered. The 1st and 2nd respondents herein entered exceptions to the final ruling of the Chambers Justice and announced an appeal to this Court. It is during the pendency of this appeal that the informant has filed this bill of information informing this Court that irrespective of the 'Stay Order' issued by the Chambers Justice and the pendency of the appeal announced by the 1st and 2nd respondents, the said 1st and 2nd respondents in violation thereof, have proceeded to give authorization to the 3rd respondent herein to perform those acts which the Chambers Justice prohibited in both the alternative and the preemptory writ he ordered issue.

The 1st respondent, at count eleven (11) of its returns, averred that it could not verify whether the 3rd respondent is performing the prohibited actions as alleged in the informant's information and that the operation of the 3rd

respondent which includes performing the prohibitive actions is enacted into law making the 3rd respondent the competent authority to perform those acts for the duration and validity of their concession agreement. The 2nd respondent, for its part, categorically disclaims any knowledge of any violation of the Chambers Justice's order and averred that since the Chamber Justice entered its determination, it has done nothing contrary thereto and that it is currently still working with the informant in the discharge of the duties in registering vehicles and issue vehicle licenses. As for the 3rd respondent, it argued that it was never a party to the petition for a writ of prohibition filed by the informant, and therefore any ruling emanating therefrom cannot be binding upon it. The 3rd respondent further averred that it is a party to a concession agreement consummated with the Government of Liberia and ratified by the legislature to perform the acts of registering vehicles and issuing driver license which precede and supersede the Public Private Partnership Agreement relied upon by the informant, and therefore it has the right to act thereunder.

To begin with, while the 1st respondent is questioning the ruling of the Chambers Justice on the ground that the 3rd respondent has a valid concession agreement to perform the act complained of by the informant, both the 1st and 2nd respondents disclaimed any knowledge of any violation of the Chambers Justice's ruling. The 2nd respondent claimed that it was working in collaboration with the informant in strict obedience to the "Stay Order" placed by the Chamber Justice in the alternative writ. As to the 3rd respondent, its defense is that not having been a party to the petition for the writ of prohibition, the ruling emanating therefrom cannot be binding upon it. The 3rd respondent further averred that it is a party to a valid concession agreement consummated with the Government of Liberia and ratified by the National Legislature. Therefore, it has the right to perform those acts that the informant referred to as being prohibited by the Chambers Justice.

As we stated earlier, we are not concerned here with whether the ruling of the Chambers Justice is meritorious or not. Our determination therein will abide the hearing of the appeal. What is of concern here is a determination as to whether, pending the hearing of the appeal announced from the Chambers Justice's ruling, the respondents herein have acted in ways and

manner that are violative of the said ruling and that will render ineffective any final judgment that this Court will enter.

What were the actions that the stay order of the Chamber Justice prohibited? The Chambers Justice stayed the proceedings, and the action order setting aside the agreement under which the informant was operating, requesting the informant to retender an application for a new agreement. The agreement under which the informant was operating granted the informant the exclusive right to produce vehicle license plates and driver's licenses. The Stay Order therefore goes to the 1st and 2nd respondents and those others, such as the 3rd respondent, in privy with the 1st and 2nd respondents who were parties to the petition for prohibition and ordered to desist from interfering with the right conferred upon the informant by the agreement consummated with informant and which is still in force.

The 3rd respondent however has justified it performing the prohibited act pursuant to a concession agreement raising two cardinal points: whether the bill of information will lie in the instant case, since the 3rd it is not a party to the petition for prohibition and a decision from an axillary action therefrom cannot be binding on it; and whether a ruling emanating from said writ of information can be binding upon it, the 3rd respondent having previously entered a valid concession agreement with the Government of Liberia, which it has a right to act under.

To answer this question, this Court takes judicial notice of an action earlier instituted by the 3rd respondent herein against the 1st respondent and the informant. The nature of that action was a petition for specific performance of the concession agreement with the Government of Liberia. The records show that the trial court heard this petition for specific performance and denied the prayer of the 3rd respondent contained therein. The 3rd respondent appealed from this adverse ruling to the Supreme Court. Subsequently, but elected to terminate the appeal by filing a notice of voluntary withdrawal of appeal, thereby conceding to the lower court's judgment and validating the informant task of registering vehicles and issuing driver's licenses under the agreement consummated with the 1st and 2nd respondents. Therefore, in the absence of the 3rd respondent

pursuing and exerting its rights to terminate the agreement consummated by the informant and the 1st and 2nd respondents to carry out activities given to the 3rd respondent under the concession agreement, the 3rd respondent is bound by the Chambers Justice's ruling on the prohibition requiring the 1st and 2nd respondents from preventing the informant from carrying out the activities under its agreement with the 1st and 2nd respondent. This assertion finds further support in the averments by the 1st and 2nd respondents, who have no information concerning the 3rd respondent performing under the alleged concession agreement consummated with the Government of Liberia.

This Court says that it is contemptuous for a party to disregard orders issued from the Supreme Court. The Chambers Justice having placed a stay order on the 1st and 2nd respondents, and the 3rd respondent being in privy with the 1st and 2nd respondents in relation to the subject of the stay order, the stay order is applicable to the 3rd respondent and therefore estops the 3rd respondent from violating the same. Any action by the respondents, contrary to the Chambers Justices ruling, in the interim, constitutes a violation of the stay of proceedings and action mandated by the Chambers Justice; therefore, the bill of information will lie in such an instant.

WHEREFORE AND IN VIEW OF THE FOREGOING, the Informant's Bill of Information is granted. The 1st, 2nd, and 3rd respondents are ordered to comply with the Chambers Justice's stay order pending the hearing and determination of the appeal in the writ of prohibition before this Court. Cost to abide final determination. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR ABRAHAM B. SILLAH, SR., OF HERITAGE PARTNERS & ASSOCIATES, LLC APPEARED FOR THE INFORMANT. COUNSELLORS AUGUSTINE C. FAYIAH, SOLICITOR GENERAL OF THE REPUBLIC OF LIBERIA AND JOEL ELKANAH THEOWAY OF THE MINISTRY OF JUSTICE, APPEARED FOR THE 1ST AND 2ND RESPONDENTS. COUNSELLOR ARTHUR T. JOHNSON APPEARED FOR THE 3RD RESPONDENT.